

Land Surveyors

- ① topographic survey, digital mapping
 - record positioning and feature information at site
 - compile accurate spatial information
- ② mapping and cartography
 - compile paper map, digital map
- Law and Civilization
- Common Law vs Civil Law
- HK legal system and constitution
- HK Court system
- Judiciary of HK
- Judgement

Law

- a set of rules keeping the society peace and safe
- essential in civilization
- ↓ friction, chaos, danger in society
- control one's behavior

3 classes of Babylonian society

- propertied class
- freedmen class
- slaves

General function of law

- ① defend people from evil
 - harm principle: protecting people from being harmed
- ② Morality
 - encourage people to do right things

③ Resolving disputes

Civil law	Common law
Countries EU, China, Japan	US, UK and colonies
Codified legal system ✓	x
Judge investigate facts	referees between lawyers
Juries criminal cases	all cases, weigh evidence, facts
Lawyers present arguments	ask for witness, evidence, present case
Precedent cases administrative of court matters only	presented, affects future cases

HK legal system

- 1 country 2 systems, basic law

HK Court system

- ① Court of final appeal
 - 1/7/1997, replace Judicial Committee of Privy Council
- ② High court
 - comprises Court of appeal and Court of first instance
- ③ District Court
 - limited jurisdiction (civil + criminal)
 - > \$50k, ≤ \$1m
 - land recovery claims value annual / ratable
 - max 7 years imprisonment ^{> 240k}
- ④ Magistrate Court
 - max 2 years imprisonment, fine \$100k
 - special magistrates
 - qualified lawyers
 - minor cases
 - no imprisonment, max fine \$50k
- ⑤ Coroner's Court
 - find the reason of death
 - suspicious, sudden death
 - body found in HK
- ⑥ Juvenile Court
 - < 16 years old, any offence except homicide
- ⑦ Lands Tribunal
 - determine building management disputes
 - appeals from valuation, commissioner of rating
- ⑧ Small claims tribunal
 - ≤ \$50k
- ⑨ Labor tribunal
 - settle disputes between employer and employee
- ⑩ Obscene Article Tribunal
 - class I, II, III
 - assist court / magistrate determination

FIRAC Model

- facts
- issues
- rules and reasoning
- application and analysis
- conclusion

HKIS

- no manner shall engage in professional misconduct
- all members must uphold the standard of conduct at time
- standard of conduct does not limit disciplinary power (Rule 2.5)
- fail to uphold → professional misconduct
- 1.1 uphold the dignity of the Institute and the surveying profession
- 1.1 Responsibility to the profession / institute
- 1.13 not accept any instruction which is not qualified or competent to discharge
- 1.14 not give opinions that is not of his ability, objective, reliable, and honest
- 1.12 ^{not} solicit instructions → profession / institute into disrepute
- 1.1.1 not advertize his service → dignity / reputation of Institute or surveying profession

Rule 1.2 Responsibilities to other members

Rule 1.3 Responsibilities to clients

Rule 1.4. Vicarious liability

Rule 2. Disciplinary powers

2.1.4 expel the member from the Institute

2.1.1 reprimand (disapprove) members

RICS Obligations

- ① members must comply with CPD requirements set by RICS
- ② must cooperate with RICS
- ③ provide all info reasonably required by the standards

RICS Rules of Conduct

- ① must be honest, act with integrity, comply with their professional obligations, including RICS obligations
- ② must maintain professional competence and ensure services are provided by competent individuals, who have necessary expertise
- ③ must provide good quality and diligent service
- ④ treat others with respect and encourage diversity and inclusion
- ⑤ act in public interest, take responsibility for actions, act to prevent harm, maintain public confidence

RICS Professional Misconduct

- ① Bribery
- ② Corruption
- ③ Money laundering
- ④ Terrorist financing

RICS Professional Competence

- ① Land surveying
- ② Computing
- ③ Management
- ④ Legal

Confidential Info

- personal info
- consent
- continued treatment
- comply with law
- court order
- communicate on threat

Corruption loopholes in Surveying

1. tendering
2. contact management
3. supervision
4. handling confidential information
5. accounting and finance
6. personnel and administration
7. conflict of interest

Bribery

- agent / employee
- without employer's approval
- accepts Advantages
- an act in relation to the principal's business

Advantages

- gift, loan, fee, reward, commission
- employment or contract
- payment, release of liability
- service of favor (except entertainment)
- exercise any right or power

Entertainment

- food and drink for consumption
- any other entertainment at the same time

Principal's approval

- e.g. company code of conduct
- for receiving advantages

No defence even if:

- customary in any profession
- does not actually have the power to carry out the act
- do not in fact do so
- no intention

Conflict of Interests

- private interests $\neq$ company interests / duties

ICAC 4As

- agent, approval, advantage, act

Ethical decision making

- ① legal requirements
- ② code of conduct
- ③ self values, sunshine test

HKIES

- engineering surveyors
 - precision mapping, settlement monitoring, structural accuracy
- HKIES Core values
- professional standards
- career development
- community building

HKIS

- assessment of professional competence (APC)
- professional training
 - HKIS probationer, APC, 2 years
 - diary, log sheet, progress summary
 - 40 hours pre qualification structured training
- technical experience
 - 2 of 10 specialized fields

① MCQ every 6 months

② Written report

③ Professional interview

Code of ethics $\neq$ code of practice

Code of practice (Cap 473 land survey ordinance)

- follow intention of grant, original occupation
- respect existing boundary features
- land boundary survey, lot sub-division survey
- setting up control network
- prepare SRP, LBP

Bill passing. under Common law

- ① consult parties affected by the bill
- ② Panel of LegCo
- ③ request Dept of Justice (DJ) for proposal
- ④ submit to Executive Council
- ⑤ Clerk of LegCo
- ⑥ published in Gazette . introduced into LegCo

Interpretation and amendment of Basic Law

- National People's Congress (NPC) : amendment
- propose for amendment :
 - Standing Committee NPC.
 - State Council
 - HKSAR